THE REPUBLIC OF CORTESIA DEL MAR
COMMON COURT

In the matter between:
TROLL_BEBEK

&

ALENARITH GROUP

CASE DETAILS

CASE NUMBER: 8

COURT: CommradePotatoe J

DATE: 9 March 2025 (GMT)

JUDGMENT

JUDGMENT OF THE COURT: CommradePotatoe J, paras [1] – [55]

JUSTICE COMMRADEPOTATOE delivered the judgment of the Court.

I. Facts

[1] Troll_Bebek comes to this court with a complaint regarding a work order issued by the Alenarith Group, on behalf of the Cabinet. The plaintiff believed that for each double chest, or 54 stacks, worth of chetherite items, they would receive 80 thousand credits. On the night of March 6, 2025, upon bringing 5 double chests worth of chetherite items to the Presidia Alenarith Station, the plaintiff was informed that the contract meant chetherite *blocks*, and not lone chetherite *items*. For reference, 1 chetherite block is equal to 9 chetherite items. As a result, a reduced payment of 44 thousand credits was provided, instead of the 400 thousand credits the plaintiff had expected.

[2] As far as the Court is aware, there is no dispute between the parties as to the happenings of this night.

[3] Furthermore, no arguments were made regarding the Alenarith Group's genuine intent, so we will assume that to be in line with the evidence President Oko submitted.

[4] Two posts from President Oko on the #wage-page channel are under consideration in this case, titled "Procurement – Chetherite" and "Root Thread - Ore Exchange". We shall refer to them as the "procurement post" and the "root post" respectively. The procurement post contains a link to the root post on its first line.

II. Actions of this Court

[5] One of the posts, specifically the root post, had been edited. To ensure that the content of the post was not in question, this Court issued a subpoena to the government of Cortesia Del Mar. President Oko then informed this Court that edit records had not been saved for the thread post itself.

[6] Seeing as the authenticity of the post was not brought into question by the plaintiff, and evidence was provided establishing

the intent of the contract anyways, we will assume that the text of the "root thread" is materially in line with what text we see today.

[7] Chief Justice IceCarim requested and the ability to ask questions on behalf of the court. We accepted this request. We do not feel there was a violation of any kind as his inclusion was at the full discretion of the Court.

III. The Contract

[8] There are two elements we must consider within this case, the procurement post itself, and the linked root post. They form the basis for the agreement between the Alenarith Group and Troll_Bebek

[9] The defendant has argued that the procurement post, in conjunction with the root post, is clear, stating:

> "It is my belief that the post contains sufficient clarity for a competent player to understand the work order and fulfill it accordingly"

[10] We will refer to this as the *clarity argument*.

A. The clarity argument

[11] The root post contains a list of resources that the Alenarith Group needs, measured in block form. President Oko submits, "[The root post] states each ore type and lists them as their respective item, in this case being Chetherite *blocks*".

[12] The Court has understood this argument to mean that, in the event the plaintiff had viewed the second root post, they would have understood that the contract was calculated in blocks and not lone items.

[13] The Court, however, rejects that argument. Even if Troll_Bebek had viewed the root post, the Court does not believe a reasonable person would have understood the procurement post to be calculated in blocks. At the time of this dispute, the procurement

post only listed *how* much Chetherite is needed in block form; it did not include any rates of pay *per* block. If a listing stated, “We need 2 gallons of water, we will pay 10 dollars per quart”, no reasonable person would expect the pay rate to be per gallon.

[14] Furthermore, the Court finds that the connection between the procurement post and the root post to be dubious. The procurement post contains a link to the root, but the post does not make it clear it is a part of the contract. In addition the root post doesn’t link back to the procurement post.

[15] That now leads us to consider the procurement post on its own.

[16] The procurement post states:

> “Yum yum! our big barges eat cheth faster than I can steal it from cadia. Mine me 128dc of it and put it in PA. screenshot the invs and we will pay 80k per dc.
>
> im so full..”

[17] The listing here is short. No mention is made here that the pay rate is calculated in blocks.

[18] We feel that, in fact, it would be more reasonable to assume that they pay rate was calculated in chetherite items compared to chetherite blocks. The in-game identifier for a chetherite item is simply “chetherite”, whereas the in-game identifier for a chetherite block is, well, “chetherite block”. It is more likely that someone would assume the abbreviated “cheth” to mean “chetherite” and not the longer “chetherite block”.

[19] We reject the clarity argument in its entirety. We hold that it would be more reasonable to assume that the listing referenced chetherite items, even including the root post.

[20] Therefore, our interpretation of the contract is that 80 thousand credits should be paid for every double chest full of chetherite items.

IV. Enforcement

[21] Now, we must consider the enforceability of this contract.

[22] Oliver Wendell Holmes, Jr wrote in *The Path of Law*, "that the making of a contract depends not on the agreement of two minds in one intention, but on the agreement of two sets of external signs — not on the parties' having meant the same thing but on their having said the same thing"[1].

[23] And we agree, the agreement that forms a contract, forms not from intent alone, but from what is communicated between the parties.

[24] By this logic, we should enforce the contract to our understanding.

[25] However, Cortesian Courts are charged with considering more than what the text says. Section 5(3) of the Contracts Act states:

> "When considering the enforceability of a contract, a Court must have regard to—
> (a) the terms of the contract, viewed objectively;
> (b) the particular circumstances of the parties;
> (c) whether enforcement of a particular obligation would be excessively unfair;
> (d) whether enforcement of a particular obligation is motivated by bad faith;
> (e) any other relevant contextual factors."

[26] There are three considerations we have considering Section 5, based on 5(3)(b), (c), and (e).

[27] It must however be understood that the Contracts Act merely calls upon us to have regard for these factors. The ball is still in our court when it comes to the final decision.

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[1] Holmes Jr., O. W. (1897). The Path of Law. *Harvard Law Review, 10,* 457-478

[28] First, the Act calls us to consider the circumstances of the parties.

[29] Troll_Bebek described themself as a “new-ish player”. We find this to be likely as the plaintiff has only been periodically active up until a few days ago. President Oko is a much more experienced player in the eyes of the court, seeing as she owns the Alenarith Group, and currently heads our Nation. She is also rank 100, which is the highest obtainable rank on Horizons End. It is unlikely she would have obtained such rank without acquiring experience and skill in Horzion’s End

[30] Troll_Bebek’s status as a new-ish player feeds into what the Court finds to be a relevant contextual factor, the actual pay rate of the chetherite.

[31] We asked the parties if a reasonable person would think the unintended rate (80 thousand credits per double chest of chetherite) was a real rate. President Oko submitted:

> “I think in a normal national context that would be patently absurd”.

We agree that such a pay rate would be absurd. However, we feel it pertinent to consider Troll_Bebek’s position as a “new-ish” player to Horizon’s End.

[32] How easy is it for someone to become acquainted with the prices of chetherite in Cortesia? We hold that it is, in fact, difficult to ascertain the price of chetherite unless you are intimately connected with the Horizon’s End economy. The Cortesian Government maintains a public stockpile of chetherite in Setra Maria, that any national may use. How should an inexperienced cortesian know the general price of chetherite when they can visit a public stockpile, free of charge, to refuel?

[33] When the plaintiff was asked if they had experienced any doubt about the offer, they replied with “somewhat”. However, when

asked if they felt the price was unreasonably high, they responded with:

> "Not necessarily, I do feel like the amount the government pays for things can vary quite a lot depending on the day. I do think it was high, but didn't seem too absurd to me especially after mining cheth in a HF (~1 dub of cheth item (not block)) took ~20min"

[34] Both parties have suggested that the high pay rate might be possible.

> President Oko submitted, "I think in a normal national context that would be patently absurd, but it's not unreasonable to believe that Cortesia Del Mar would offer high wages near that price point" [grammar and spelling adjusted].
>
> And Troll_Bebek submitted, "I know CDM has been known for doing sort of "flash deals" in regard to certain projects or things they need *now*" [grammar adjusted].

With these submissions considered, we cannot find the unintended price point to be wholly unreasonable.

[35] There is one final consideration this Court thinks important, sourced from Section(5)(3)(c). Whether enforcing this contract excessively unfair towards the Alenarith Group. And whether, that should be grounds for cancellation.

[36] If we uphold our interpretation of the contract, the Alenarith group will be forced to pay 356 thousand credits to Troll_Bebek.

[37] Yodabird19 submitted:

> "I will also point out that even at exploitative bazaar rates (going off Sherbet_S's listing for cheth at 14.9c/item on Hegemony bazaar, which afaik is the competitive rate), one dub of cheth items (54*64 items) would only go for 51494c".

[38] This price we would be upholding would be exceedingly high compared to even the highest market rates. So, as a result, we hold that enforcing the contract would be unfair towards the Alenarith Group.

[39] However, considering that, we still feel the need to enforce the contract. Section 5(1) states, "Courts must in general respect the right to freedom of contract, which forms part of public policy". We must be cautious when considering the cancellation of a contract. If parties can simply apply to a court and bail out of a bad deal, people will have less confidence in making agreements with one another.

[40] We feel the parties should be responsible when drafting and agreeing to contracts, as the alternative will weaken legal agreements across the board. We shouldn't cancel a contract just because someone was irresponsible when writing and posting it.

[41] We submit that there was irresponsibility on the part of the Alenarith Group, thanks to the poor structure of the contract. A drafter should have consideration for how all players will interpret their contract when writing it, especially when they are operating on behalf of the government, and when any player may take up said agreement.

[42] As a result, we cannot cancel the contract on the basis of unfairness.

[43] Considering the skill levels of each parties, the possibility of this pay rate, albeit rare, and our submissions on unfairness, we ultimately decide to enforce this Contract.

[44] We now land on the question of how to enforce this contract.

[45] We think leniency is in order here considering the high amount due. We feel giving the Alenarith Group 2 whole months should be plenty of time of the repay.

[46] Furthermore, we shall let the Alenarith group apply for more time if they are unable to pay it back.

V. Criminal Concerns

[47] Troll_Bebek has argued that the procurement post constitutes false advertising.

[48] As it stands, there is no crime titled “false advertising” within Cortesia Del Mar.

[49] To ensure that we cover every base, we shall assume that the plaintiff is referencing the crime of fraud, as we think it the most comparable to false advertising.

[50] The Court however, rejects any notion that fraud has occurred, as the plaintiff has not established any evidence of intent.

[51] This argument is dismissed.

VI. Order

[52] The Alenarith Group shall pay a total of 356 thousand credits to Troll_Bebek within the next 2 months.

[53] The Alenarith Group may apply to this Court for more time.

[54] Troll_Bebek may apply to this Court if payment isn’t received over the next 2 months.

[55] The parties shall inform the Court upon the repayment of the Contract.